

NovaTech Enterprises

VEN-CON-001 | Master Services Agreement — CloudScale Solutions Ltd

PARTIES

This Master Services Agreement ("MSA") is entered into as of 1 February 2026 between NovaTech Enterprises Inc., a Delaware corporation ("Customer"), and CloudScale Solutions Ltd., a company registered in the UK ("Vendor").

1. SERVICES

Vendor will provide cloud hosting and managed infrastructure services as described in Statement of Work SOW-001-2026 ("Services"). Services include: managed Kubernetes clusters, object storage, CDN services, and 24/7 NOC monitoring. Vendor must maintain ISO 27001 and SOC 2 Type II certifications throughout the term.

2. TERM

This MSA commences on 1 February 2026 and continues for an initial term of 36 months ("Initial Term"). Following the Initial Term, this Agreement shall automatically renew for successive 12-month periods unless either party provides 90 days written notice of non-renewal.

3. FEES AND PAYMENT

Customer shall pay Vendor a monthly base fee of USD 48,000 as specified in SOW-001-2026. Variable consumption charges are invoiced monthly in arrears within 5 business days of month-end. Payment is due within 30 days of invoice date. Late payments accrue interest at 1.5% per month. Annual price increases are capped at CPI + 2% with 60 days notice.

4. SERVICE LEVEL AGREEMENT

Vendor guarantees 99.95% monthly uptime for production workloads. Downtime is measured as inability to process requests for more than 60 seconds. Service credits apply for SLA breaches: 99.9–99.95% = 10% monthly credit; 99.0–99.9% = 25% credit; below 99.0% = 50% credit. Credits are the sole remedy for uptime failures.

5. DATA PROTECTION

Vendor acts as a Data Processor under GDPR. A Data Processing Agreement (DPA-001-2026) is incorporated by reference. Customer data must be stored in EU-West data centres unless

Customer provides written consent for alternative regions. Data must be encrypted in transit (TLS 1.3) and at rest (AES-256).

6. CONFIDENTIALITY

Both parties agree to maintain the confidentiality of each other's Confidential Information and not to disclose such information to third parties without prior written consent. This obligation survives termination for 5 years.

7. LIMITATION OF LIABILITY

Each party's aggregate liability under this MSA shall not exceed the total fees paid by Customer in the 12 months preceding the event giving rise to the claim. Neither party shall be liable for indirect, consequential, or punitive damages.

8. TERMINATION FOR CAUSE

Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure such breach within 30 days of notice. Insolvency events are grounds for immediate termination.